

Opinion of the Court

First, just because plaintiffs often plead unlawful retaliation to establish a First Amendment violation is not a reason to afford them a cause of action to sue federal officers for money damages. If anything, that retaliation claims are common, and therefore more likely to impose “a significant expansion of Government liability,” *Meyer*, 510 U. S., at 486, counsels against permitting *Bivens* relief.

Second, the Court of Appeals’ scope-of-duty observation does not meaningfully limit the number of potential *Bivens* claims or otherwise undermine the reasons for hesitation stated above. It is easy to allege that federal employees acted beyond the scope of their authority when claiming a constitutional violation. And, regardless, granting *Bivens* relief because a federal agent supposedly did not act pursuant to his law-enforcement mission “misses the point.” *Hernández*, 589 U. S., at —. “The question is not whether national security,” or some other governmental interest, actually “requires [the defendant’s] conduct.” *Ibid.* Instead, we ask “whether the Judiciary should alter the framework established by the political branches for addressing” any such conduct that allegedly violates the Constitution. *Ibid.* With respect to that question, the foregoing discussion shows that the Judiciary is ill equipped to alter that framework generally, and especially so when it comes to First Amendment claims.

Boule responds that any hesitation is unwarranted because this Court in *Passman* already identified a *Bivens* cause of action under allegedly similar circumstances. There, the Court permitted a congressional staffer to sue a congressman for sex discrimination under the Fifth Amendment. See 442 U. S., at 231. In Boule’s view, *Passman*, like this case, permitted a damages action to proceed even though it required the factfinder to probe a federal official’s motives for taking an adverse action against the plaintiff.

Even assuming the factual parallels are as close as Boule claims, *Passman* carries little weight because it predates our current approach to implied causes of action and diverges